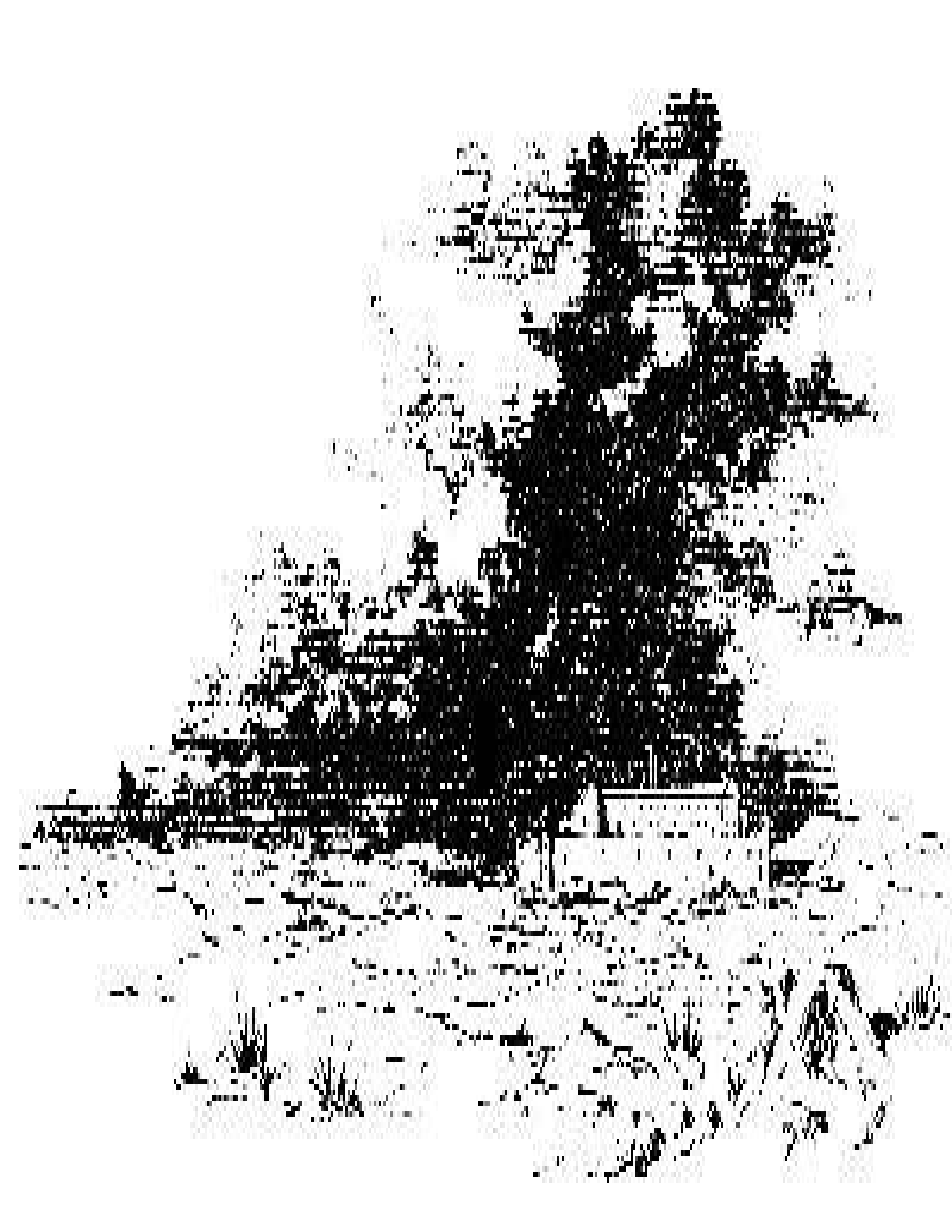






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*** START OF THE PROJECT GUTENBERG EBOOK CRIMINAL
NEGLIGENCE ***

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CRIMINAL NEGLIGENCE

*Somebody was going to have to be left behind
... and who it would be was perfectly obvious....*

BY J. FRANCIS MCCOMAS

Illustrated by Freas

Warden Halloran smiled slightly. "You expect to have criminals on Mars, then?" he asked. "Is that why you want me?"

"Of course we don't, sir!" snapped the lieutenant general. His name was Knox. "We need men of your administrative ability—"

"Pardon me, general," Lansing interposed smoothly, "I rather think we'd better give the warden a ... a more detailed picture, shall we say? We have been rather abrupt, you know."

"I'd be grateful if you would," Halloran said.

He watched the lanky civilian as Lansing puffed jerkily on his cigar. A long man, with a shock of black hair tumbling over a high, narrow forehead, Lansing had introduced himself as chairman of the project's coördinating committee ... whatever that was.

"Go ahead," grunted Knox. "But make it fast, doctor."

Lansing smiled at the warden, carefully placed his cigar in the ash tray before him and said, "We've been working on the ships night and day. Both the dust itself and its secondary effects are getting closer to us all the time. We've been so intent on the job—it's *really* been a race against time!—that only yesterday one of my young men remembered the Mountain State Penitentiary was well within our sphere of control."

"The country—what's left of it—has been split up into regions," the general said. "So many ships to each region."

"So," Lansing went on, "learning about you meant there was another batch of passengers to round up. And when I was told the warden was yourself—I know something of your career, Mr. Halloran—I was delighted. Frankly,"

he grinned at Knox, "we're long on military and scientific brass and short on people who can manage other people."

"I see." Halloran pressed a buzzer on his desk. "I think some of my associates ought to be in on this discussion."

"Discussion?" barked Knox. "Is there anything to discuss? We simply want you out of here in an hour—"

"Please, general!" the warden said quietly.

If the gray-clad man who entered the office at that moment heard the general's outburst, he gave no sign. He stood stiffly in front of the warden's big desk, a little to one side of the two visitors, and said, "Yes sir, Mr. Halloran?"

"Hello, Joe. Know where the captain is?"

"First afternoon inspection, sir." He cocked an eye at the clock on the wall behind Halloran. "Ought to be in the laundry about now."

The warden scribbled a few words on a small square of paper. "Ask him to come here at once, please. On your way, please stop in at the hospital and ask Dr. Slade to come along, too." He pushed the paper across the desk to the inmate. "There's your pass."

"Yes sir. Anything else, warden?" He stood, a small, square figure in neat gray shirt and pants, seemingly oblivious to the ill-concealed stares of the two visitors.

Halloran thought a moment, then said, "Yes ... I'd like to see Father Nelson and Rabbi Goldsmid, too."

"Uh, Father Nelson's up on the Row, sir. With Bert Doyle."

"Then we'll not bother him, of course. Just the others."

"Yes, sir. On the double."

Lansing slouched around in his chair and openly watched Joe Mario walk out. Then he turned back to Halloran and said, "That chap a ... a trusty, warden?"

"To a degree. Although we no longer use the term. We classify the inmates according to the amount of responsibility they can handle."

"I see. Ah—" he laughed embarrassedly, "this is the first time I've been in a prison. Mind telling me what his crime was?"

Halloran smiled gently. "We try to remember the man, Dr. Lansing, and not his crime." Then he relented. "Joe Mario was just a small-time crook who got mixed up in a bad murder."

Lansing whistled.

"Aren't we wasting time?" growled the general. "Seems to me, warden, you could be ordering your people to pack up without any conference. You're in charge here, aren't you?"

Halloran raised his eyebrows. "In charge? Why, yes ... in the sense that I shape the final decisions. But all of my assistants contribute to such decisions. Further, we have an inmate's council that voices its opinion on certain of our problems here. And we—my associates and I—listen to them. Always."

Knox scowled and angrily shifted his big body. Lansing picked up his cigar, relit it, using the action to unobtrusively study the warden. Hardly a presence to cow hardened criminals, Lansing thought. Halloran was just below middle height, with gray hair getting a bit thin, eyes that twinkled warmly behind rimless glasses. Yet Lansing had read somewhere that a critic of Halloran's policies had said the penologist's thinking was far ahead of his time—too far, the critic had added.

As Joe Mario closed the warden's door behind him, two inmates slowed their typing but did not look up as he neared their desks. A guard left his

post at the outer door and walked toward Mario. The two of them stopped beside the desks.

"What's the word, Joe?" the guard asked.

Mario held out his pass.

"Gotta round up the captain, Doc Slade and the Jew preacher," he said.

"All right. Get going."

"What do those guys want?" asked a typist as he pulled the paper from his machine.

Mario looked quickly at the guard and as quickly away from him.

"Dunno," he shrugged.

"Somethin' about the war, I bet," grunted the typist.

"War's over, dope," said the other. "Nothin' behind the curtain now but a nice assortment of bomb craters. All sizes."

"Go on, Joe," ordered the guard. "You heard something. Give."

"Well ... I heard that fat general say something about wanting the warden outa here in a hour."

The typewriters stopped their clacking for a bare instant, then started up again, more slowly. The guard frowned, then said, "On your way, Joe." He hesitated, then, "No use to tell you to button your lip, I guess."

"I'm not causing any trouble," Mario said, as the guard opened the door and stood aside for him to pass into the corridor.

O.K.'d for entrance into the hospital wing, Joe Mario stood outside the railing that cut Dr. Slade's reception area off from the corridor that led to the wards. An inmate orderly sat behind the railing, writing a prescription for a slight, intelligent-looking man.

Mario heard the orderly say, "All right, Vukich, get that filled at the dispensary. Take one after each meal and come back to see us when the

bottle's empty. Unless the pain gets worse, of course. But I don't think it will."

"Thanks, doc," the patient drawled.

Both men looked up then and saw Mario.

"Hi, Joe," the orderly smiled. "What's wrong with you? You don't look sick!"

"Nothin' wrong with me that a day outside couldn't cure."

"Or a *night*," laughed Vukich.

Mario ran a hand over his sleek, black hair. "Better a night, sure," he grinned back. Then he sobered and said to the orderly, "Warden wants to see the doc. Right away."

"Mr. Halloran sick?"

"Naw ... it's business. Urgent business."

"Real urgent, Joe? The doc's doing a pretty serious exam right now."

Mario paused, then said, "You guys might as well know about it. There's a general and a civilian in the warden's office. They're talkin' about something outside. Warden wants the doc in on it."

Sudden tension flowed out between the three men. Down the hall, a patient screamed suddenly in the psycho ward. The three of them jerked, then grinned feebly at each other.

Vukich said slowly, "Well, you don't start playing catch with atom bombs without dropping a few. Wonder what it's like ... out there?"

"We haven't *heard* that it's any different," the orderly's voice lacked conviction.

"Don't be silly," Vukich said flatly. "Ever since they moved the dames from Tehama into C block we've known *something* happened."

"Get the doc," Mario said. "I've got to be on my way."

"Me, too." Vukich's thin, clever face looked thoughtful.

The others stared blankly at him and said nothing.

As Alfred Court, captain of the prison, strode down the flower-bordered path that led from the shops unit past A block to the administration building, a side door in A block clanged open and a sergeant came out. The sergeant turned without seeing his superior and walked hurriedly toward the administration wing.

"Hey, sarge!" Court called. "What's the hurry?"

The sergeant whirled, recognized the captain and quickly saluted.

"Glad to see you, sir," he said. "Just the man I was looking for!"

"Good enough. What's on your mind? Better tell me as we go for the warden's in a hurry to see me."

The two men walked abreast, both big, although Court lacked any trace of the sergeant's paunch. As they walked and talked, their eyes darted continually about, unconsciously checking the appearance of the buildings, the position of the guard in the gun tower, the attitude of a very old inmate who was meticulously weeding a flower bed.

"Captain, you going to let the men out for their yard time?"

Court's pace slowed. "Why not?"

"No real reason ... *now*. But there's trouble in the air, sir. I can smell it. The whole place is buzzing ... with *something*."

"With what?"

"I can't put my finger on it. But all the men know there's some pretty big shots—at least one general, they say—in the warden's office, right now. There's a hot rumor that there's trouble outside—some sort of disaster."

Court laughed shortly. "That Mario! He's going to lose a nice job if he doesn't keep his mouth shut!"

"None of them keep their mouths shut, captain."

"Yes ... well, I don't know what's up, myself. I'm heading for that conference right now. I'll ask the warden about letting the men out of their cells. What's their attitude?"

The sergeant's broad, red face grew more troubled.

"Uh ... the men aren't hostile, captain. They seem worried, nervous ... kind of scared. If somebody at the top—the warden or yourself—could convince them things were as usual outside ... they'd quiet down, I'm sure."

They were now thirty feet from the door to the administration building a door that opened for but one man at a time. The officers stopped.

"Things are *not* normal outside," Court growled, "and you know it. I've been wondering how long this prison could go on—as if there were still a state's capital, with its Adult Authority, its governor, its Supreme Court. D'you think every man jack here doesn't know a visit from the Authority's long overdue!"

"Yeah—"

"Well, I'll go in, sarge, and see what's what. If you *don't* hear from me, stick to routine."

"Right, captain."

He remained where he was while Captain Court walked slowly toward the door, both hands well in sight. A pace from the door he stopped and exchanged a few words with someone watching him through a barred peephole. After a moment, the door slid open and he walked into the building.

He was the last to arrive at the warden's office. Lansing gazed at him in fascination. Goldsmid had been a Golden Gloves champion middleweight before he had heeded the call of the Law, and he looked it. Dr. Slade was the prototype of all overworked doctors. But Court was a type by himself.

Lansing thought he'd never seen a colder eye. Yet, the captain's lean face—so unlike the warden's mild, scholarly one—was quiet, composed, unmarked by any weakness of feature or line of self-indulgence. A big, tough man, Lansing mused, a very tough man. But a just one.

"I've a problem, warden," Court said when the introductions were over. "Something we should decide right away."

"Can't it wait?" Knox said irritably.

Lansing almost choked with stifled laughter when Court just glanced briefly at Knox, then said quietly to the warden, "Sergeant Haines has just advised me that the inmates know about these gentlemen and they're—restless. I wonder if we shouldn't keep the men in their cells this afternoon."

"Blast it!" roared Knox. "Can't you people keep a secret?"

"There are no secrets in prison, general," Halloran said mildly. "I learned that my first week as a guard, twenty years ago." To Court he said, "Sit down, Alfred. Unless you disagree strongly, I think we'll let the men out as usual. It's a risk, yes, but right now, the closer we stick to normal routine, the better."

"You're probably right, sir."

Court sat down and Halloran turned to his two visitors.

"Now, gentlemen," he smiled, "we're at your disposal. As I told you, my two associate wardens aren't here. Mr. Briggs is in town and Mr. Tate is home ill. Dr. McCall, our Protestant clergyman, is also home, recovering from a siege with one of those pesky viruses. But we here represent various phases of our administration and can certainly answer all of your questions."

"Questions!" Knox snorted. "We're here to tell you the facts—not ask."

"General," soothed Lansing. He looked across the desk at Halloran and shrugged slightly. The warden twinkled. "General Knox is a trifle ... ah,

overblunt, but he's telling you the essential truth of the situation. We've come to take you away from here. Just as soon as you can leave."

"Hey?" cried Slade. "Leave here? The devil, man, I've got to take out a gall bladder this afternoon!"

"I'm afraid I don't understand," murmured Goldsmid. "I thought the war was over—"

"This is all nonsense!" There was an ominous note in Knox's hoarse voice. "Do you people realize you're now under the authority of the Fifth Defense Command?"

Lansing cried: "Let's be sensible about all this!" He pointed his cigar at the fuming soldier. "General, these gentlemen have every right to know the situation and we'll save time if you'll permit me to give them a quick briefing."

"All right! All right!"

"Well, then." Lansing crossed his long legs, glanced nervously about the room, and said, "The world as we know it is done with. Finished. In another week it will be completely uninhabitable."

"Hey," grunted Slade. "You Lansing, the physicist?"

"That's right, doctor."

"Didn't place you at first. Well, what's going to end this lousy old world of ours?"

"Well," Lansing answered, "we wiped out our late antagonists with skill and dispatch. But, in the end, they outsmarted us. Left behind some sort of radioactive dust which ... *spreads*. It's rolling down on us from Chicago and up from Texas. God knows what other parts of the country are like—we haven't had time to discuss it with them on the radio."

Goldsmid muttered something in Hebrew.

"Isn't that lack of communication rather odd?" asked the warden.

"Not so very. We've been too busy building rocket ships."

"Rocket ships!" Court was jarred out of his icy calm.

"You mean spaceships?" cried the doctor.

"Yes, Slade, they do," murmured the warden.

"Precisely," Lansing said. "When it looked as if the cold war would get rather warm, the allied governments faced up to the fact that our venerable planet might become a ... ah, a battle casualty. So, in carefully selected regions, rather extensive preparations were made for a hurried departure from this sector of the universe."

"Oh, come to the point!" Knox exploded. "All you people need to know is that one of those regions is this area of the Rocky Mountains, that the ships are built and ready to go, and that you're to get aboard. Fast!"

"That," nodded Lansing, "is it."



The four prison officials looked at each other. Halloran and Court sat quiet; Goldsmid slowly dropped his eyes to the ground and his lips moved. Slade scratched his chin.

"Going to Mars, hey?" he asked abruptly.

"That's our destination."

The doctor chuckled. "Comic-book stuff," he chortled.

"No, it isn't," Halloran said. "We've been expecting something like this for a long time. Haven't we?"

"Indeed we have," Goldsmid said. "Expecting, but not quite believing."

Halloran looked thoughtfully at the physicist. "Dr. Lansing, these ships of yours ... they're pretty big, I take it?"

"Not as big as we like. They never are. But they'll do. Why?"

"I should remind you that we have well over two thousand inmates here."

"Inmates!" barked the general. "Who the devil said anything about your inmates? Think we'll take a lot of convicts to Mars! Populate it with killers, thieves—"

"Who does go, then?" Halloran did not raise his voice but Knox looked suddenly uneasy.

"Why ... uh, your operating personnel," he replied gruffly. "Your guards, clerks ... hell, man, it's obvious, isn't it?"

"I'm afraid that is out," Goldsmid said. "For me, that is." He stood up, a heavy-shouldered middleweight running a little to fat. "Excuse me, warden, my counseling period's coming up."

"Sit down, Pete," Halloran said quietly. "We haven't finished this conference."

"I admire your sentiments, Rabbi," Lansing said hurriedly, "but surely you realize that we can't take any criminal elements to ... ah, what will be our new world. And we do have a special need for you. We've plenty of your

co-religionists among our various personnel, but we don't have an ordained minister for them. They're your responsibility."

"Afraid my first responsibility is here." Goldsmid's voice was quite matter-of-fact.

"So's mine," grunted Slade. "Warden, even if the world ends tomorrow, I've got to get Squeaker Hanley's gall bladder out today. No point in my hanging around any longer is there?"

"Of course there is," Halloran answered. He took a package of cigarettes from his pocket, selected one, and lit it. He exhaled smoke and looked speculatively at Lansing. The scientist felt himself blushing and looked away.

Halloran turned to Court.

"Quite a problem, isn't it, Alfred," he said. "I suppose these gentlemen are right in keeping the inmates off their ships. At any rate, we can't argue the matter—so let's do what we're asked. I think you'd better plan to get the guards out of here tonight, at shift change. Might pass the word to their wives now, so they can start packing a few essentials. Doc," he turned to Slade, "before you get your greedy hands on Squeaker's gall bladder, you'd better round up your staff and have them make the proper arrangements."

"O.K., I'll put it up to them."

"You'll *not* put it up to them," the warden said sharply. "You'll *order* them to be ready when the general, here, wants them."

"I'll give no orders," Slade said grimly.

"Just a minute," interposed Court. "Sir, aren't you going?"

"Of course not. But that's neither here nor there—"

The loud clangor of a bell pealed through the room. The two visitors jumped.

"What's that?" cried Knox.

"Yard time," Halloran smiled. "The men are allowed two hours out in the yard, now. They exercise, play games, or just sit around and talk."

"Oh."

"Did I understand you correctly, Warden Halloran?" Lansing's bony face was pale now. "Do you refuse to come with us?"

When the bell rang, Joe Mario had been standing near the door to the warden's office, ostensibly filing reports. Now, he closed the drawer with a bang, stretched, and started toward the outside door.

"Where are you going?" the guard asked suspiciously.

"The yard. Where else?"

"Not a word," Mario added virtuously. "I was too busy doin' my work. Anyway, you gotta let me out. My team's got a ball game set for this afternoon."

"Oh ... all right." He looked at the typists. "How about you two? Want out?"

The two men glanced quickly at each other, then shoved back their chairs and got up from their desks.

"Sure," one of them grinned, "I guess we'll take a little air."

Lansing had the feeling he used to have occasionally, back in his university days when he lectured on freshman physics—as if he were talking to a class of deaf students. For, like the hapless freshmen, Warden Halloran was quite obviously not listening to him. But the scientist plunged on. "Sir," he said hoarsely, "we need you. We *will* need you! I'm a scientist—I know nothing of the problems of ... ah, community living. Neither does Knox. He's accustomed to major crises—and solving them by giving orders. But both of us know there'll come a time when people won't take orders—"

"Absolutely correct," Knox said unexpectedly. "Once we get settled on Mars, the military takes a back seat. And—I mean this, Lansing—I'll be damn' glad of it. When the people get their towns built they'll need some gents with the right kind know-how to help them, show them—"

"That's all very interesting, general, but it's not for me."

"Why not?"

Halloran snubbed out his cigarette, looked up at the general and at the scientist. He smiled briefly. "It's just my job, gentlemen—let's not discuss the matter any further. You can't make me go."

"We will!" barked Knox. "I told you you were under the jurisdiction of the Fifth Defense Command and you are. If I want to, I can send a tank company over here and drag you to those ships!"

"He's right, you know," Lansing said.

Court stood up and took one step toward the general.

"Alfred!" the warden did not lift his voice, but Court stopped. "General Knox," Halloran went on in a conversational tone, "you're being a bit of bully, you know, and in this prison we've all been ... ah, conditioned against bullies." He looked down at his desk and frowned. "However, I'll admit that your position requires that I elaborate my reasons for staying here. Well, then. As I see it, your people, your ... ah, colonists, can help themselves. Most of *my* people, the inmates here, can't. A long time ago, gentlemen, I decided I'd spend my life helping the one man in our society who seemingly can't help himself, the so-called criminal. I've always felt that society owes a debt to the criminal ... instead of the other way around."

He hesitated, grinned apologetically at Captain Court. "I'm sermonizing again, eh, Alfred? But," he shrugged, "if I must get dramatic about it I can only say that my life's work ends only with my—death."

"It's quite a rough job, you know," Goldsmid remarked. "This is a maximum security institution. Too many of the inmates have disappointed the warden. But he keeps trying and we've learned to follow his example."

"Our psychiatric bunch have done some mighty interesting things," beamed Slade, "even with cases that looked absolutely hopeless."

"None of them can be saved now," muttered Lansing.

"That is in the hands of God," Goldsmid replied.

"Well," Halloran said gently, "still going to send those tanks after me, general?"

"Uh ... no ... I won't interfere with a man doing his duty."

Lansing cleared his throat, looked slowly from the somber-faced clergyman, to the fidgeting medico, to the burly captain, still staring impassively at the general, to, finally, the quiet, smiling warden. "Gentlemen," he said slowly, "it occurs to me that the situation hasn't actually registered on you. The earth is really doomed, you know. This dust simply won't tolerate organic life. In some way—we have not had time to discover how—it's self-multiplying, so, as I said, it spreads. Right now, not a tenth of this entire continent—from the pole down to the Panama Canal—is capable of supporting any kind of life as we know it. And that area is diminishing hourly."

"No way of checking it?" Slade asked. His tone was one of idle curiosity, nothing else.

"No. It's death, gentlemen. As deadly as your ... ah, gallows."

"We use the gas chamber," Halloran corrected him. His mouth twisted. "More humane, you know."

There was brief quiet, then the warden said, "Well ... now that we've finished philosophizing, let's get back to the matter at hand. We can have everyone that's going ready to leave by seven tonight. Will that be satisfactory?"

"It'll have to be," Knox grunted.

"Thank you." Halloran reached for his phone, then dropped his hands on his desk. "I'd like to ask you a question," he said. "Perhaps it's presumptuous, but I'm rather curious about the ... er, last workings of our government. Tell

me, don't you really have room for our inmates? You haven't told us how many ships you've built. Or how big they are."

Lansing looked at Knox. The general flushed, then stared at the floor. Lansing shrugged tiredly.

"Oh, we've plenty of room," he sighed. "But ... our orders are to take only those completely fit to build a new world. We've ... well, we have practiced a lot of euthanasia lately."

"Judges," murmured Goldsmid.

"If you had come sooner," there was no anger in Halloran's voice, "couldn't you have selected some of our people, those that I ... all of us know are ready for rehabilitation—even on another planet?"

"Perhaps. But no one remembered there was a prison nearby."

The warden looked at the rabbi. Goldsmid raised his heavy shoulders in an ancient Hebraic gesture.

"That was always the trouble, wasn't it, Pete?" Halloran murmured. "People never remembered the prisons!"

The telephone beside him shrilled loudly, urgently.

The inmate mopping the floor of Condemned Row's single corridor slowed in front of Bert Doyle's cell. Doyle was slated for a ride down the elevator that night to the death cell behind the gas chamber. At the moment, he was stretched out on his bunk, listening to the soft voice of Father Nelson.

"Sorry to interrupt," the inmate said, "but I thought you'd like to know that all hell's busting loose down in the yard."

Father Nelson looked up.

Doyle, too, looked interested. "A riot?" he asked.

"Yessiree, bob!"

"Nonsense!" snapped the priest. "This prison doesn't have riots!"

"Well, it's sure got one, now. 'Scuse me, Father, but it's the truth. The men grabbed four or five yard guards and the screws in the towers don't dare shoot!"

He gave up all pretense of work and stood, leaning on his mop-handle, his rheumy old eyes glowing with a feverish excitement.

Nelson stood up.

"Will you excuse me, Bert?" he asked. "I'd better see if I can help the warden."

Doyle, too, sat up, swung his feet to the steel floor, stood up and stretched. "Sure," he said. His hard face was pale but otherwise he seemed quite calm. "You've been a great help, Father." He looked quizzically at the old inmate. "You lying, Danny? Seems to me the boys have got nothing to beef about here."

"Heh, they sure have now."

"What?"

"Well, I got this from a guy who got it from Vukich who heard it from Joe Mario. Seems there's a big-shot general and some kinda scientist in Mr. Halloran's office." He shifted his grip on the mop-handle. "You gents maybe won't believe this, but it's what Joe heard 'em say to the warden. Outside is all covered with radium and this general and this here scientist are goin' to Mars an' they want the warden to go along. Leavin' us behind, of course. That's what the boys are riotin' about."

Bert Doyle burst into harsh laughter.

"Danny! Danny!" he cried. "I've been predicting this! You've gone stir-bugs!"

"Ain't neither!"

"Just a moment, Bert," Nelson whispered. Aloud he said, "Dan, go call the guard for me, please." When the old man had shuffled out of earshot the

priest said to the condemned man, "It could be true, Bert. By radium, he means radioactive material. And there's no reason spaceships can't get to Mars. We'd reached the Moon before the war started, you know."

Doyle sank back on his bunk.

"Well, I'll be damned!" he breathed.

"Bert!"

Doyle grinned sheepishly. "Force of habit." Then, more soberly, "So they're off to Mars, eh? Father, you better get down there and pick up your reservations!"

"Don't be ridiculous!" The priest's voice softened and he patted the killer's shoulder. "I will go down and see what's what, Bert. And I'll be back just as soon as the men have quieted down. That is, if they *are* creating a disturbance."

The footsteps of the approaching guard sounded loud in the corridor. Doyle frowned a little.

"When you come back, Father, you'll tell me the truth? No kidding, now!"

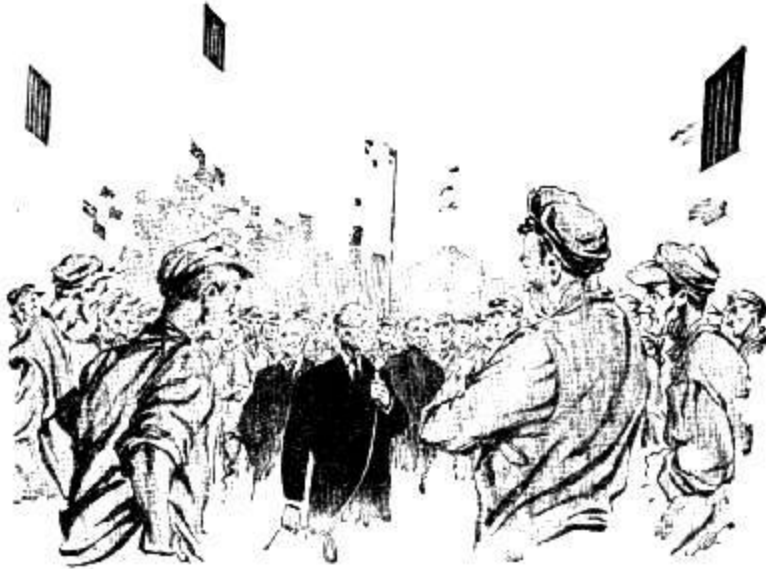
The guard stood in front of the door of heavy steel bars. Father Nelson looked down at the man on the bunk.

"I'll tell you everything, Bert. I swear it."

"Uh, Father?" the guard's voice was nervous—and embarrassed.

"Yes, Perkins?"

"I ... I can't let you out right now. Orders from the warden. Not a cell door opens till I hear from him direct."



Doyle chuckled.

"Might as well sit down, Father," he said, "and make yourself comfortable ____"

"What will you do?" cried Lansing.

"Go out and talk to them, of course," replied Halloran. He arose from his desk, a calm, unhurried man.

"Look," growled Knox, "you get me through to the town. Some of our people are still there. I'll order out as many soldiers as you want. I'll see to it that they get here—on the double!"

Halloran flushed. "Would it ease your conscience, general," he grated, "if you killed off my men instead of leaving them—behind! Now, you will please keep quiet. You'll be perfectly safe!"

"What will we do with them, sir?" Court gestured at Lansing and Knox.

Halloran strode from behind his desk to the opposite end of the room. As he twirled the dials of a wall safe he said, "They'll have to remain here, for now. The men have got between this building and the gate office." The safe

swung open and he reached far inside and took out a submachine gun. "Here," he held the weapon out to Court. "If I don't come back, use this to get them to the gate office."

"Didn't know you had an arsenal in here!" cried Slade.

"No one else did, either, except Alfred. Now Doc, think you and Pete had better stay here."

Slade and Goldsmid pulled themselves out of their chairs as one man. Their timing was perfect.

"No, you don't, hero!" growled Slade.

"Warden," Goldsmid said, "perhaps *I* could talk to the men—"

The warden smiled and walked toward the door. There he stopped and said to Court, "Switch on the speaker system, Alfred. I'll take the portable mike from the next office. While I'm out there, get word to all custodial and operating personnel that they will be permitted to leave tonight. Meantime, I hope they will stay on their jobs. Better phone Mr. Tate, have someone try to locate Mr. Briggs, be sure and call Dr. Slade's staff."

"Right, sir."

The three men left the office. Court, the gun cradled under one arm, picked up the phone and spoke into it. His voice was a low, crisp monotone. After a while, he replaced the receiver and stood quiet, staring impassively at the others.

"You might say the warden's career has been twenty years of futility," he muttered. Lansing and Knox felt he wasn't actually speaking to them. "Now me, I'm a screw of the old school. Hardboiled, they say. *I* never expected a thing from a con ... and cons have lied to him, politicians have broken their promises ... but the liars have loved him and the dumbest dope in the legislature has respected him."

"Will he ... be all right?" Lansing asked.

Court shrugged. "Who knows? You handled this very badly," he said dispassionately. "Five minutes after you stepped through the main gate

every inmate in the place knew you were here and started wondering. Why didn't you write—make arrangements to see the warden outside?"

"I'm sorry," Lansing said. "We know very little about prisons."

Court laughed shortly. "You'd better learn," he said grimly.

"Anyway we can see what's going on?" rumbled Knox. "And how about that speaker business?"

"There's a window in the next office. Come along."

They crouched at the window, the fat Knox whizzing a little, because Court had ordered them to keep out of sight of the rioters. They saw Halloran, Slade and Goldsmid at his heels, walking out into the small courtyard that lay between them and safety. Over the wall speaker came a sullen roar, something very like the ragged blast of a rocket whose timing is off. A few gray-clad men in the courtyard saw the approaching warden, surged toward him, screaming at their fellows in the big yard behind them.

Halloran ignored the clutching hands. He held the mike up and they heard him say, "There's no point in my talking with you unless you will be quiet and listen." He paused. The roar slowly subsided into an angry mutter. "Thanks. That's better."

Now, they could see Slade's head but both Halloran and the rabbi were hidden by the swirl of gray figures that swept around the three prison officials.

"Now," the warden went on, "it seems that you have something to say to me. Good enough. But why didn't you send word through your council, instead of roughing up guards, damaging property, yelling your heads off and generally behaving like a bunch of spoiled brats. Go on, tell me! Why?"

Someone's scream came clearly over the mike. "The world's coming to an end! They're leaving us here to die!"

"Yeah!" the mike picked up another voice. "How about that?"

Before the wordless, mindless roar could rise again, the warden barked, "Oh, hush up!" And they were quiet.

"My God," breathed Lansing.

"Now," Halloran's voice was easy, assured, "I want to make sure that all of you hear me. So, I'm coming out in the center of the yard. Rabbi Pete Goldsmid and Doc Slade insist on coming with me although," he chuckled, "I understand Squeaker Hanley's screaming for the doc to cut out his gall bladder." A few of the men laughed. "All right, here I come. And you fellows behind me, keep off the wire. I don't want this mike to go dead and have to yell my lungs out."

They saw the eddy of men around him move slowly through the broken gate and out of their sight.

"What will he tell them," muttered Knox.

"Whatever—they'll believe it," Court said. The courtyard before them was now empty. He stared thoughtfully out the barred window, then said, "Think you could get to the gate office pretty soon, now—"

"No!" snarled Knox. "I want to see what happens to that gutty so-and-so!"

Lansing grinned nervously. "Somehow, captain, I feel it won't be necessary for us to sneak out of here."

They listened again while assorted thieves, murderers, rapists, men—save for an innocent few—whose hands were consistently raised against their fellows' peace and property, heard their jailor tell them that the end of their world, a world that many of them remembered but dimly, was coming to an end. The screaming broke out again when Halloran spoke of the Mars-bound ships, and, for a moment, the three in the office thought he had lost control. But the amplifiers prevailed and Halloran laughed and said, "Anyway, we're not going to Mars—"

"You can go!"

The man who yelled that was apparently very close to the warden within his view, for they heard him say: "Chrisman, you're a fool—as usual! Would I bother to come out here and talk to you if I could go?"

That got them. That, they understood. If a guy didn't scam from a hot spot when he could ... well, then, he couldn't scam in the first place. So, the warden was stuck, just like they were.

Later, perhaps, a few of them might figure out why.

"Now, let's have no more interruptions," Halloran said. "*I* don't think there's any need to go. Neither does the doc, here, or the rabbi. We're all staying—because the desert to the south of us has stopped the spread of this dust and it seems it can't cross the rivers, either. So, we're safe enough."

"But that's not true," groaned Lansing.

Court glanced at him. "Would you tell them different?" he said coldly.

"No—"

Halloran said, "Well, that's that. Life is a little difficult outside and so the people out there want to try to get to Mars. Believe me, that's a trip I want someone else to make first. But if they think life will be easier on those deserts—why, let them go. But God help them—they'll need it."

He paused. Knox tried to catch Lansing's eye, but the scientist's face was blank, unseeing.

"What do we do?" This voice was not hysterical, just seriously questioning.

"*You* should do darned well. Life should be easy enough for *you*. You've got your own farms, your livestock, laundry, hospital, shops—everything a man can need. So, take over and run things to suit yourselves."

A unanimous gasp whistled over the speaker. Then, they all cried just one word.

"Us?"

"Why not? Don't you think you can?"

Silence, broken by strange, wistful mutterings.

"I'd suggest this," Halloran said. "Let's follow our normal routine tonight—no lock-ups, of course—and tomorrow, you fellows take over. I'll help you in any way I can. But it will be *your* job. Perhaps after breakfast tomorrow, you ought to have a mass meeting. Under the supervision of your council, I'd say. You can't keep going without some kind of order, you know."

Again silence.

"My God," whispered Lansing, "he makes it all sound so *real*."

"Any questions?" Halloran asked.

"Hey, warden! How about the dames?"

"The ladies will join you tomorrow morning." He chuckled. "I imagine they'll be able to handle you all right!"

A joyous roar.

"However," Halloran raised his voice, "I'd like to remind you fellows that a successful community needs ... *families*!"

There was a long quiet, then, broken finally by an inmate who asked, "Warden, how about the guys up on the Row?"

"Well," Halloran's voice lost all humor, "you can start ripping out the gas chamber whenever you're ready to. I'll see that you get the tools."

The swell of applause was so loud in the office that Court hastily turned down the speaker's volume.

"All right," Halloran said when they had quieted down, "that's about it. You're free now, till supper-time. I'd suggest all of you start right now, thinking about your future—"

Outside the main gate, first Knox, then Lansing shook hands with the gray-faced warden.

"Trucks'll be in town at seven for your people," Knox muttered. He gave a windy sigh. "It's all fouled up. As usual. Damn it, we need people like you, sir!"

Lansing looked at Halloran for a long time, trying to see behind the mask of exhaustion. "I'm a mannerless fool," he said at last. "But Mr. Halloran, would you tell me what you're thinking? I mean, really thinking? Even if it's rough on us!"

Halloran laughed softly. "I wasn't thinking about you at all, Dr. Lansing. I was—and am—regretting that what I told the men couldn't be the truth. It's too bad they'll have so short a time. It would be very interesting to see what they would do with—*life*."

Knox scowled. "Seems like they haven't done much with it so far."

"Come along, general," Lansing said quietly. "You don't understand. None of us do. We never did."

THE END

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